Temporary
4164

Executive Order.

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE

By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such act embodied in "An act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, for and in consideration of the sum of SEVENTY-SEVEN HUNDRED FIFTY ($7,750.00) DOLLARS, certain real estate now being held and administered by him as such Alien Property Custodan, and heretofore, upon requirement, conveyed, transferred, assigned and delivered to him as the property of MAX L. HIRSCHHORN and BLANKA LEHMAN, residing in Germany, whom, after investigation, he did determine to be enemies within the purview of said Act as amended, which said real estate is situate in the Borough of Manhattan, City of New York and State of New York, and described as follows, to-wit:

> ALL that certain lot, piece or parcel of land, with building thereon erected, beginning at a point on the southerly side of East One hundred and tenth Street, distant one hundred (100) feet westerly along the same from the corner formed by the intersection of the southerly side of One hundred and tenth Street and the westerly side of First Avenue; running thence southerly, parallel with the westerly side of First Avenue, and part of the way through a party wall, one hundred feet, eleven inches, to the centre line of the block; thence westerly along the said centre line of the block, twenty-five feet; thence northerly, parallel with said westerly side of First Avenue, and part of the way through another party wall, one hundred feet, eleven inches, to the southerly side of East One hundred and tenth Street; thence easterly along the southerly side of East One hundred and tenth Street, twenty-five feet to the point or place of beginning.

My reasons for the foregoing determination, order, rule and regulation are:

(a) An advantageous offer for the sale of said real estate has been received by the Alien Property Custodian, as shown by the appraisals of the property sold;

(b) An attempted sale at public auction would be a useless formality and would involve unnecessary expenses, delay and inconvenience;

(c) It appears that it is to the interest of the trust held, in that its value will be conserved by this sale by the substitution of the proceeds in lieu of the property sold, because of the difficulty of the administration of such real estate and its consequent deterioration;

(d) The character of this property is such that there are greater possibilities of a decrease in its value than an increase, and that such sale made at this time would, therefore, be to the best advantage of the trust;

(e) The fact that Municipal violations of approximately Three Thousand ($3,000.00) Dollars have accrued against this property makes it advisable to sell at the present time.

CALVIN COOLIDGE

THE WHITE HOUSE,
March 6, 1925.

[No. 4164]

GOVERNMENT PRINTING OFFICE